INTERNATIONAL

DEVELOPER COLLABORATION AGREEMENT

Malaysia base template · adaptable for approved projects across Asia

IMPORTANT — LEGAL REVIEW REQUIRED BEFORE SIGNATURE

This is a commercial drafting template, not legal or tax advice. Before signature for a project in Thailand, Indonesia or another jurisdiction, locally qualified counsel must confirm licensing, foreign-business, property-marketing, consumer, tax, withholding, data-protection and enforceability requirements and prepare any required country addendum.

AGREEMENT PARTICULARS	
Effective date	[day] [month] [year]
PF contracting entity	[Full legal name of PF EuroAsia Labuan/Malaysian company]
Collaboration Partner	[Full legal name of developer / property owner / authorised seller]
Project country	[Malaysia / Thailand / Indonesia / other: __________]
Initial term	Twelve (12) months minimum
Status	Non-exclusive · independent contractors · success-based remuneration

Prepared by Property Facilitators EuroAsia

Working in collaboration with Property Facilitators Iberia S.L. and selected associated partners.

1. PARTIES

1.1 PF EuroAsia. This Agreement is made by [full legal name of the PF EuroAsia Labuan/Malaysian company], company number [●], with registered office at [●] (PF EuroAsia).

1.2 Collaboration Partner. The counterparty is [full legal name], company number [●], incorporated in [jurisdiction], with registered office at [●] (Partner).

1.3 Together. PF EuroAsia and the Partner are each a Party and together the Parties.

2. PURPOSE AND APPOINTMENT

2.1 Appointment. The Partner appoints PF EuroAsia on a non-exclusive basis to present the Approved Offerings to suitable international prospects and networks in the Approved Territories and Channels identified in Schedule 1. PF EuroAsia accepts that appointment subject to this Agreement.

2.2 Network collaboration. PF EuroAsia may carry out the collaboration through, and present Approved Offerings to, Property Facilitators Iberia S.L. and selected associated partners, introducers, advisers, agents, family offices, digital platforms and professional networks. PF EuroAsia remains responsible for its own obligations. Unless separately agreed in writing, those network participants are not parties and acquire no authority to bind the Partner.

2.3 Approved Offerings. Only properties, developments, units or related opportunities listed in Schedule 2 or later approved in writing are Approved Offerings. Identifiable authorised email approval is sufficient to add or update an offering, rate, inventory status or campaign material.

2.4 Non-exclusive; no minimum performance. Either Party may work with others. PF EuroAsia does not guarantee a minimum number of enquiries, reservations or sales. Targets are indicative unless Schedule 1 expressly makes them binding.

3. NATURE OF RELATIONSHIP

3.1 Independent contractors. The Parties are independent contractors. Nothing creates a partnership, joint venture, employment, fiduciary relationship, franchise or general agency.

3.2 No authority to bind. PF EuroAsia and its network participants may not sign sale documents for the Partner, vary prices or terms, accept reservations or deposits, receive client money, make guarantees, or create obligations in the Partner’s name without a separate written authority confirmed by local counsel.

3.3 No legal representation. PF EuroAsia provides international marketing, lead-generation and introduction support only. It does not provide legal, tax, immigration, investment or regulated property advice and does not represent a buyer or the Partner in any legal proceeding or conveyance.

4. PF EUROASIA SERVICES

4.1 Presentation and promotion. PF EuroAsia may present approved materials through its own channels and networks, including PF Iberia and associated partners, direct introductions, newsletters, websites, podcasts, events, social media and approved portals. Public statements must remain consistent with Partner-approved information.

4.2 Prospect handling. PF EuroAsia may conduct preliminary suitability discussions, record source and interest, and introduce prospects. Any preliminary screening does not replace the Partner's AML, KYC, sanctions or source-of-funds checks.

4.3 Reporting. PF EuroAsia will keep reasonable introduction records and may provide periodic activity summaries. Project-specific reporting may be stated in Schedule 1.

5. PARTNER RESPONSIBILITIES

5.1 Authority and project status. The Partner warrants that it owns, directly represents or is duly authorised to sell each Approved Offering and will provide evidence on request. It must disclose material ownership, title, planning, construction, licence, completion, financing, encumbrance, leasehold, foreign-ownership and use restrictions.

5.2 Accurate materials. The Partner is responsible for the accuracy, completeness and legality of prices, availability, specifications, images, plans, projected returns, rental claims, incentives, completion dates and other supplied materials, and must promptly correct or withdraw outdated or misleading content.

5.3 Local transaction control. The Partner and its locally authorised professionals are solely responsible for local advertising approvals, viewings, negotiations, reservations, deposits, buyer contracts, disclosures, conveyance, registration, handover, complaints and after-sales obligations.

5.4 Response and notice. The Partner will respond reasonably promptly and notify PF EuroAsia in writing of reservations, contracts, cancellations, completion, amounts received and other events affecting Commission.

5.5 Compliance documents. The Partner will provide corporate, ownership, project-licence, bank, tax and signatory documents reasonably required for due diligence, invoicing or lawful payment.

6. MARKETING MATERIALS AND BRAND USE

6.1 Limited licence. During the Term, the Partner grants PF EuroAsia a non-exclusive, revocable, royalty-free licence to reproduce, translate, resize and distribute approved names, marks, images and project materials solely to perform this Agreement. Material changes require approval; formatting and accurate translation do not.

6.2 Removal. On expiry, termination or written withdrawal, PF EuroAsia will stop new promotion within a reasonable period, subject to technical caching and archival records.

7. INTRODUCED PROSPECTS

7.1 Valid introduction. An Introduced Prospect is a person or entity first identified to the Partner by PF EuroAsia or its disclosed network participant in a written message, enquiry record or agreed CRM entry. It includes a connected company, purchasing vehicle, nominee, spouse, immediate family member or controlled entity used to acquire an Approved Offering.

7.2 Pre-existing relationship. Within five (5) business days, the Partner may reject an introduction only with dated written evidence of an active, substantive and direct pre-existing sales relationship concerning the relevant Approved Offering during the previous six (6) months. Silence accepts the introduction record but does not oblige the prospect to transact.

7.3 Protection period. Commission protection continues during the Term and for eighteen (18) months after expiry or termination for every Introduced Prospect, unless Schedule 1 states a longer period, where the transaction results directly or indirectly from the introduction.

7.4 No circumvention. The Partner will not restructure a transaction, change the purchasing person or entity, redirect the prospect to an affiliate, substitute a unit or defer completion to avoid Commission. Commission remains payable on a substantially connected transaction.

8. COMMISSION

8.1 Project-specific rate. The Commission rate for each Approved Offering must be entered in Schedule 2. The anticipated commercial range is four per cent (4%) to ten per cent (10%), but only the expressly completed and agreed rate applies. A different rate, tier or fixed fee must be recorded in Schedule 2 or a signed variation.

8.2 Commission Base. Unless Schedule 2 states otherwise, Commission is calculated on the gross purchase price in the binding buyer contract after any documented discount, excluding VAT/GST or equivalent transaction tax, government charges, transfer or registration fees, finance charges, and separately priced furniture, management or rental packages.

8.3 Earned and payable. Commission is earned when the Partner or a connected recipient receives non-refundable cleared funds under a binding reservation or sale contract with an Introduced Prospect. Unless staged payment is stated in Schedule 2, full Commission is payable within seven (7) business days after the selected contractual payment trigger.

8.4 Payment recipient. Commission will be invoiced by and paid to the Designated PF Payee in Schedule 1, intended to be PF EuroAsia’s Labuan/Malaysian company unless otherwise agreed in writing. Payment to another person does not discharge the Partner unless PF EuroAsia authorised it in writing.

8.5 Statement. With each payment the Partner will provide a statement showing the property or unit, buyer identifier, contract price, discounts, excluded taxes, funds received, Commission calculation, deductions and net remittance.

9. TAXES, WITHHOLDING AND PAYMENT COSTS

9.1 **Own taxes.** Each Party is responsible for its own corporate, income, indirect and other taxes. Commission is exclusive of VAT, SST, GST or similar tax the Designated PF Payee is legally required to charge, which will be added to a valid invoice.

9.2 **Required withholding only.** The Partner may deduct tax only where applicable law requires it. It must apply available treaty relief where valid documentation has been supplied, remit the deduction on time, and promptly provide PF EuroAsia with the official withholding certificate or equivalent evidence.

9.3 **No unauthorised set-off.** Except for legally required withholding or a written agreed amount, Commission is payable without set-off, counterclaim or deduction. The payer bears outgoing bank charges; the Designated PF Payee bears receiving-bank charges.

9.4 **Currency and bank security.** Payment will use the currency and verified bank account on the Designated PF Payee's invoice. Bank-detail changes require independent verification through previously established contact details.

10. LOCAL-LAW AND REGULATED-ACTIVITY SAFEGUARDS

10.1 **Mandatory law prevails.** Nothing requires an act prohibited by the law of the project country or place of performance. Mandatory local law and valid regulatory requirements prevail to the extent of conflict.

10.2 **Offshore introduction model.** Unless local counsel confirms otherwise in a signed addendum, PF EuroAsia's role is limited to activities conducted outside the project country: international promotion, lead generation, preliminary communications and introduction. The Partner must ensure that in-country brokerage, agency, advertising, negotiation, viewing, reservation, payment-handling and closing are performed by the Partner or a properly licensed or authorised local person.

10.3 **Thailand condition.** For a Thailand project, performance is conditional on Thai counsel confirming the permitted scope under foreign-business, brokerage or agency, advertising, tax, consumer and data-protection rules. A Thailand addendum is required before PF EuroAsia or its foreign network performs activity in Thailand or is described publicly as a Thai broker, agent or legal representative.

10.4 **Indonesia and other countries.** For any other project country, the Partner must identify required local licences, ownership restrictions, marketing approvals and buyer disclosures. The Parties will adopt a local addendum where counsel advises it is required.

11. ETHICS, AML AND SANCTIONS

11.1 **Compliance.** Each Party will comply with applicable anti-bribery, anti-money-laundering, counter-terrorist-financing, sanctions and anti-fraud laws and will not make or request an improper payment.

11.2 **Refusal and suspension.** Either Party may decline or suspend an introduction or transaction where reasonable compliance concerns arise. Accrued payment obligations on lawful completed transactions remain unaffected.

12. DATA PROTECTION AND CONFIDENTIALITY

12.1 Prospect data. Each Party acts as an independent controller of personal data it receives unless a written data-processing addendum states otherwise. A Party sharing data must have a lawful basis and give required notices or obtain required consent, including for international transfers.

12.2 Data minimisation and security. The Parties will share only information reasonably necessary, use proportionate security, restrict access, promptly notify a material breach affecting shared data, and honour applicable data-subject rights.

12.3 Confidential information. Non-public commercial, client, pricing, project and business information is confidential. The recipient may use it only for this Agreement and disclose it only to personnel, advisers and authorised network participants who need it and are suitably bound. Public, unrestricted prior-known, independently developed or legally compelled information is excluded.

12.4 Survival. Confidentiality continues for three (3) years after termination; personal-data and trade-secret duties continue as applicable law requires.

13. TERM AND TERMINATION

13.1 Minimum term. This Agreement begins on the Effective Date and continues for an initial fixed term of twelve (12) months. Neither Party may terminate for convenience during that initial term.

13.2 Renewal. After the initial term, it automatically renews for successive twelve-month periods unless either Party gives at least thirty (30) days' written notice before the end of the current period.

13.3 Termination for cause. A Party may terminate immediately if the other commits an irremediable material breach, fails to remedy a remediable material breach within fourteen (14) days after notice, becomes insolvent, loses required authority or licence, creates material legal or reputational risk, or requests unlawful conduct.

13.4 Consequences. Termination ends new promotion but does not affect accrued rights, accepted buyer transactions, the Introduction Protection Period, unpaid Commission or clauses intended to survive.

14. LIABILITY AND DISCLAIMERS

14.1 Responsibility. Each Party is responsible for loss directly caused by its breach, negligence, fraud or wilful misconduct. The Partner remains responsible for Approved Offerings, transaction documents, local professionals and statutory buyer-facing duties.

14.2 Excluded loss. To the maximum extent permitted by law, neither Party is liable for indirect or consequential loss, or loss of opportunity, profit, goodwill or anticipated savings. This does not limit unpaid Commission, fraud, wilful misconduct, confidentiality or data breaches, or liability law does not permit to be limited.

14.3 No investment assurance. PF EuroAsia does not warrant project performance, returns, exchange rates, financing, visas, rental occupancy, appreciation or resale. Prospects must obtain independent legal, tax, financial and technical advice.

15. NOTICES

15.1 Method. Formal notices must be sent by email and, for termination or material breach, also by courier or another trackable method to Schedule 1. Email is received when no delivery failure is returned, if sent before 17:00 on a business day at the recipient's location; otherwise on the next business day.

16. GENERAL

16.1 Announcements. Neither Party may describe the other as an exclusive partner, local broker, legal representative or group company without prior written approval. Accurate references to an approved non-exclusive collaboration are permitted.

16.2 Assignment and subcontracting. Neither Party may assign without written consent, not unreasonably withheld. PF EuroAsia may use PF Iberia and associated partners for outreach and introductions while remaining responsible for its obligations.

16.3 Entire agreement and priority. This Agreement and Schedules contain the entire agreement on their subject. A signed country addendum prevails, then Schedule 2 for the relevant project, then Schedule 1, then the main clauses.

16.4 Changes and waiver. Changes must be written and signed, except authorised email may update inventory, price, availability, approved materials and project details under clause 2.3. A waiver must be written and applies only to the stated instance.

16.5 Severability. An invalid provision will be limited or replaced to the minimum extent needed to preserve its commercial purpose; the remainder continues.

16.6 Force majeure. A Party is not liable for delay beyond reasonable control, excluding payment already due. It must notify the other Party and reasonably mitigate.

16.7 Counterparts and e-signature. This Agreement may be signed in counterparts and by electronic signature or exchanged PDF, each treated as an original to the extent permitted by law.

17. GOVERNING LAW AND DISPUTES

17.1 Malaysia base position. Subject to clause 17.2 and Schedule 1, this template is intended to be governed by Malaysian law. The agreed court or arbitration forum must be completed in Schedule 1 before signature.

17.2 Project-country review. For a project outside Malaysia, locally qualified counsel must confirm mandatory law and whether a country addendum or different law, forum, language, tax or regulatory structure is required. No choice-of-law clause excludes mandatory law.

17.3 Good-faith escalation. Before formal proceedings, authorised senior representatives will attempt in good faith for fifteen (15) business days to resolve a dispute, except where urgent relief is reasonably required.

COMPLETION GATE

Do not sign until Schedule 1, each applicable Schedule 2 and any required country addendum have been completed and approved by the relevant legal and tax advisers.

SCHEDULE 1

COMMERCIAL AND PARTY PARTICULARS

PF EUROASIA	
Effective Date	____
PF EuroAsia legal name	____
Company / registration no.	____
Registered office	____ ____
Designated PF Payee	____ (Intended Labuan/Malaysian company receiving Commission)
PF notice email	____

COLLABORATION PARTNER	
Partner legal name	____
Company / registration no.	____
Country of incorporation	____
Registered office	____ ____
Authorised signatory	____
Partner notice email	____

OPERATIONAL AND LEGAL CHOICES	
Project country	____
Approved territories	____
Approved channels	Website / direct network / partners / newsletters / portals / other: __________
Reporting frequency	____
Introduction protection	18 months / other: __________
Governing law	Malaysia / project country / other: __________
Dispute forum	Courts / arbitration institution, seat and rules: __________________________
Country addendum?	Yes / No Name and date: _________________________________

SCHEDULE 2

APPROVED OFFERINGS AND COMMISSION

Complete one row per project, development or commission tier. Attach additional signed pages if required. The exact completed rate controls; 4%–10% is an anticipated range only.

Project / units	Location	Rate	Commission Base	Payment trigger / staging
		_____ %		
		_____ %		
		_____ %		
		_____ %		
		_____ %		
		_____ %		

Project-specific notes / exclusions

Documents supplied by Partner

- Evidence of ownership or authority to sell / market
- Corporate and authorised-signatory documents
- Project, construction, planning and sales licences required locally
- Current inventory, pricing, payment plans, buyer contracts and disclosures
- Bank, tax, invoicing, withholding and remittance instructions

SIGNATURES

By signing below, each signatory confirms authority to bind the named Party, that the Schedules are complete, and that any required project-country legal review and addendum have been obtained.

PF EUROASIA	COLLABORATION PARTNER
For and on behalf of [PF EuroAsia legal entity]	**For and on behalf of** [Partner legal name]
Name Geoffrey Harding	**Name** ____________________________________
Title / capacity ____________________________________	**Title / capacity** ____________________________________
Signature ____________________________________	**Signature** ____________________________________
Date ____________________________________	**Date** ____________________________________
Place ____________________________________	**Place** ____________________________________

COUNSEL CONFIRMATION / COUNTRY ADDENDUM RECORD

Reviewed by (firm / counsel): ________________________________
Jurisdiction: ____________________ Date: ____________________
Addendum or amendments attached: ____

PROPERTY FACILITATORS EUROASIA

International introductions · locally controlled transactions · transparent success-based terms